Revision Date:
06/01/2026

Background:
The State of California provides state funded food benefits through the California Food Assistance Program (CFAP). CFAP provides food benefits for qualified Non Citizens who are not eligible for federal CalFresh benefits because of their immigration status. CFAP is issued in the same method as CalFresh.

Purpose:
This section details the regulations for CFAP benefits. This section is being revised to include updated CFAP eligibility for Parolees and information regarding the Able-Bodied Adults Without Dependents (ABAWD) time limit.

Policy:
In order to be eligible to CFAP, Non Citizens must be ineligible for CalFresh benefits solely due to their immigration status under the Personal Responsibility and Work Opportunity Reconciliation Act (PRWORA) of 1996 or battered Non Citizens. Refer to Section 63-157 for regulations about sponsored Non Citizen CFAP eligibility and deeming rules.

1. Non Citizen Conditions

CFAP qualified Non Citizens that do not meet a Non Citizen condition as detailed in Section 63-154, are eligible to CFAP as long as they meet all other eligibility criteria. However, once a Non Citizen condition is met, the Non Citizens are ineligible for CFAP. Battered Non Citizens are potentially eligible for CFAP regardless of meeting a Non Citizen condition. Refer to Non Citizen eligibility scenarios below for examples.

2. CFAP Qualified Non Citizens

CFAP qualified Non Citizens that do not meet a Non Citizen condition as detailed in Section 63-154, are eligible to CFAP as long as they meet all other eligibility criteria. However, once a Non Citizen condition is met, the Non Citizens, with the exception of battered Non Citizens, are ineligible for CFAP. See below examples of Non Citizen categories potentially eligible for CFAP:

Non Citizen Category	Description
Lawful Permanent Resident (LPR)	An individual who is lawfully admitted to the United States (U.S.) for permanent residence. These individuals hold a Permanent Resident card (I-551) also known as a green card.
Conditional Entrant	A conditional entrant under §203(a)(7) of the Immigration and Nationality Act (INA). Prior to April 1, 1980, conditional entrant was the primary method of entry for refugees. The provision was abolished by the Refugee Act of 1980; however, there may still be individuals with this Non Citizen category.
Parolee	An individual paroled into the U.S. under §212(d)(5) of the INA. Parole allows an individual who may be inadmissible or otherwise ineligible for admission into the U.S. to enter for a temporary period due to urgent humanitarian reasons or significant public benefit. A Class of Admission code of DT signifies parole granted at a port of entry under §212(d)(5) of the INA. Once

	parole has expired, if the individual has not been approved for re-parole or acquired another qualified Non Citizen status, they are considered to have undocumented status and are no longer eligible to CFAP.
Battered Non Citizen	The battered Non Citizen must meet all of the following requirements: • Have an approved or pending petition presenting a prima facie case for immigration status in one of the following categories: o Form I-130 filed by the battered Non Citizen's spouse or the battered Non Citizen child's parent. • The Non Citizen, the Non Citizen's child, or the Non Citizen child's parent has been battered or subjected to extreme cruelty within the U.S. by their U.S. Citizen or LPR spouse, parent, or member of the family residing in the same household (HH). • There is substantial connection between the abuse and the need for benefits. • The Non Citizen no longer resides with the batterer. Note: Battered Non Citizens are eligible for CFAP regardless of meeting a Non Citizen condition.
Victim of Human Trafficking	Non Citizen victims of human trafficking may apply for a T Visa. Prior to being approved a T Visa a victim of human trafficking may be eligible to CFAP. To be eligible the trafficking victim must do all the following: • Provide a sworn statement that they are a victim of human trafficking. • Provide one of the following items as evidence they are a victim of trafficking: o Police, government agency, or court records or files. o News articles. o Documentation from a social services, trafficking, or domestic violence program or a legal, clinical, medical, or other professional from whom the victim has sought assistance from in dealing with the crime. o A statement from an individual with knowledge of the trafficking. o Other documentary evidence. o A copy of a completed T Visa application. o Written notice from United States Citizenship and Immigration Services (USCIS) of the receipt of the T Visa application. o If additional evidence cannot be provided a sworn statement may be accepted on its own if the information provided in the statement appears credible. • Have a pending application for a T Visa, is preparing to file an application for a T Visa, or have been granted a T Visa without an Office of Refugee Resettlement (ORR) or Office of Trafficking in Persons (OTIP) certificate. Any of the following documents may be accepted as verification the Non Citizen has filed or is preparing to file for a T Visa: • A confirmation receipt or letter from USCIS verifying an application for a T Visa has been filed. • A copy of the Application for T Nonimmigrant Status (I-914).

	• A statement from a law enforcement official or victim advocate who is assisting the victim with the T Visa application. • If no documentation is available, the applicant's statement that they have filed or intend to apply for a T Visa. CFAP benefits terminate when one of the following occur: • The T Visa is administratively denied. • The individual has not applied for a T Visa within one year of applying for CFAP. • A request by law enforcement officers on behalf of the recipient for federal continued presence status has not been made within one year. • The Non Citizen is approved a T Visa with an ORR or OTIP certificate. Review Section 63-154 for treatment of changes in Non Citizen Status.
Victim of Other Serious Crimes	Non Citizen victims of a serious crime may apply for a U Visa. To be eligible to CFAP, the Non Citizen must have already applied for a U Visa and is awaiting a decision or has been granted a U Visa. Any of the following documents may be accepted as verification the Non Citizen applied for or was approved a U Visa: • A confirmation receipt or letter from USCIS that a Petition for U Nonimmigrant Status (I-918) has been filed. • An I-797 approving a U Visa. • An I-797 serving as a receipt confirming an application for an Employment Authorization Document (EAD) has been received based on a U Visa application. • An EAD issued with category A19 or A20 for a Non Citizen approved a U Visa. When an application for a U Visa is administratively denied, the Non Citizen loses their eligibility to CFAP. Review Section 63-154 for treatment of changes in Non Citizen status.

See below for Non Citizen eligibility scenarios:

Scenario	Outcome
30 year old parolee has a date of entry in 2010.	They are not potentially eligible for CalFresh because they do not have a qualifying Non Citizen status for CalFresh (parolee). They are not potentially eligible to CFAP because they meet a Non Citizen condition (have been residing in the U.S. longer than 5 years).
16 year old conditional entrant with a date of entry 2 years ago.	They are not potentially eligible for CalFresh because they do not have a qualifying Non Citizen status for CalFresh (conditional entrant). They are not potentially eligible for CFAP because they meet a Non Citizen condition (under 18 years of age).
20 year old conditional entrant with a date of entry 2 years ago.	They are not potentially eligible for CalFresh because they do not have a qualifying Non Citizen status for CalFresh (conditional entrant). They are potentially

	eligible for CFAP because they do not meet a Non Citizen condition.
25 year old entered as a refugee 1 year ago.	They are not potentially eligible for CalFresh because they do not have a qualifying Non Citizen status for CalFresh (refugee). They are not potentially eligible for CFAP because they do not have a CFAP qualifying Non Citizen status (refugee).
25 year old entered as a refugee 1 year ago, is now a LPR.	They are potentially eligible to CalFresh because they are currently in a qualifying Non Citizen status for CalFresh (LPR). They are not potentially eligible to CFAP since they have potential eligibility to CalFresh.
45 year old parolee with a date of entry 2 years ago and lives with their 15 year old child who is also a parolee with same date of entry.	The HH is not potentially eligible for CalFresh because they do not have qualifying Non Citizen status for CalFresh (parolees). The 45 year old is potentially eligible for CFAP because they do not meet a Non Citizen condition. The 15 year old is not potentially eligible for CFAP because they do meet a Non Citizen condition (under 18 years of age).

3. Work Requirements

All CFAP recipients must be assessed for potential exemptions from work registration and ABAWD work requirements. Refer to Sections 63-901 and 63-904 for more information.

4. ABAWD Time Limit

When a CFAP recipient begins receiving federally funded CalFresh benefits, ABAWD status must be re-assessed and the ABAWD must receive a new set of three countable months of federally funded CalFresh. If the ABAWD lost eligibility for CFAP due to reaching the ABAWD time limit, they must re-apply for assistance. Refer to Section 63-904 for more information.

References:

Manual of Policies and Procedures (MPP) 63-403, 63-410, 63-411
All County Letter (ACL) 19-93, 25-92, 26-03, 26-29

Sunset Date:

This policy will be reviewed for continuance on or by 05/31/2029.

Approval for Release:

6/5/26

Alberto Banuelos. Ph.D., Interim Director
Self-Sufficiency Services